

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
EUGENE FARRELL AND RITA FARRELL,

SUMMONS

Plaintiffs,

Plaintiff designates Bronx
County as the place of
trial.

-against-

The basis of venue is:
Statutory

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE JOHN GLYNN AND
DETECTIVE THOMAS MISERANDINO,

Plaintiffs reside at:
1560 Longfellow Avenue
Bronx, NY 10460

Defendants.

County of BRONX

To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
March 7, 2018


HERBERT RODRIGUEZ, JR., ESQ.
SCHWARTZ GOLDSTONE CAMPISI & KATES, LLP
Attorneys for Plaintiffs
90 Broad Street, Suite 403
New York, New York 10004
212-962-2800
Our File No. 5035

TO: CITY OF NEW YORK
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
One Police Plaza
New York, NY 10038

Detective John Glynn
One Police Plaza

New York, NY 10038

Detective Thomas Miserandino
One Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
EUGENE FARRELL AND RITA FARRELL,

Date Purchased:

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, DETECTIVE JOHN GLYNN AND
DETECTIVE THOMAS MISERANDINO,

Defendants.

-----X
Plaintiffs, by their attorneys, **SCHWARTZ GOLDSTONE CAMPISI & KATES, LLP**,

complaining of the Defendants, respectfully alleges, upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. At the time of the commencement of this action, Plaintiffs were residents of the County of Bronx, State of New York.
2. This action falls within one or more of the exemptions set forth in CPLR §1602.
3. The cause of action alleged herein arose in the County of Bronx, State of New York.
4. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK, hereinafter referred to as "CITY", was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
5. That at all times hereinafter mentioned, the defendant NEW YORK CITY POLICE DEPARTMENT, hereinafter referred to as "POLICE", was and still is an agency of the defendant CITY.
6. That at all times hereinafter mentioned, the defendant POLICE OFFICER GLYNN, hereinafter referred to as "GLYNN", was and is a police officer/detective, employed by the defendant POLICE.

7. That on or about May 25, 2017, the aforesaid defendant GLYNN was employed by the defendant POLICE and was assigned to the Canine Unit based out of Rosedale, County of Queens, City and State of New York.

8. That on or about May 25, 2017, the aforesaid defendant GLYNN was employed by the defendant POLICE to execute a warrant on 1560 Longfellow Avenue, Bronx New York, County of Bronx, City and State of New York.

9. That at all times hereinafter mentioned, the defendant POLICE OFFICER MISERANDINO, hereinafter referred to as "MISERANDINO", was and is a police officer/detective, employed by the defendant POLICE.

10. That on or about May 25, 2017, the aforesaid defendant MISERANDINO was employed by the defendant POLICE and was assigned to the County of Bronx, City and State of New York to execute a warrant on 1560 Longfellow Avenue, Bronx, NY.

11. On May 25, 2017, and at all times mentioned herein there existed a premises located at 1560 Longfellow Avenue, in the County of Bronx, City and State of New York.

12. That on or about May 25, 2017, while the plaintiff EUGENE FARRELL was lawfully present in the premises of aforesaid location, he was caused to be negligently, intentionally, wrongfully, willfully, maliciously and with gross negligence, physically assaulted, beaten, battered by Defendants CITY, POLICE, GLYNN and MISERANDINO, and was caused to sustain severe and permanent injuries.

13. That on or about May 25, 2017, the plaintiff EUGENE FARRELL, while lawfully present in the premises of aforesaid location, was without just cause or provocation, and with excessive force, caused to be negligently, intentionally, wrongfully, willfully, maliciously and with gross negligence, physically assaulted, beaten, battered by Defendants, their agents, servants and/or employees.

14. That prior hereto on July 31, 2017, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiffs demands for adjustment

thereof was duly served on the claimants behalf on the Comptroller for the City of New York and the New York Police Department and that thereafter said Comptroller for the City of New York and the New York Police Department refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

15. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

16. The aforementioned occurrence took place due to the negligence of the Defendants, their agents, servants, employees and/or licensees, acting within the scope of their authority, within the scope of their employment and in the furtherance of their agency.

17. The aforesaid occurrence and the results thereof were due to and caused by the joint, several and concurrent negligence of the Defendants and their agents, servants, employees and/or licensees in negligently, carelessly and recklessly causing, allowing and/or permitting the Plaintiff, EUGENE FARRELL, to be willfully, maliciously and with gross negligence and excessive force, physically assaulted and battered.

18. No negligence on the part of the Plaintiffs contributed to the occurrence alleged herein in any manner whatsoever.

19. That by reason of the foregoing, Plaintiffs were caused to sustain severe and serious personal injuries and other consequential damages, plaintiff's health was impaired, plaintiff suffered great mental distress.

20. That as a result of the foregoing, Plaintiff EUGENE FARRELL was damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

21. Plaintiffs repeat, reiterate and reallege each and every allegation set forth above with the same force and effect as if set forth at length herein.

22. The aforementioned occurrence took place due to the willful, wanton and intentional acts and/or omissions of the Defendants and their agents, servants, employees and/or licensees, all of whom were acting within the scope of their authority, within the scope of and in furtherance of their employment and in furtherance of their agency.

23. The acts complained of herein constitute intentional infliction of emotional harm and distress.

24. That by reason of the foregoing, Plaintiff was caused to sustain serious injuries and to suffer pain, shock and mental anguish; these injuries and their effects will be permanent; as a result of said injuries Plaintiff has been caused to incur and will continue to incur expenses for medical care and attention; and, as a further result, Plaintiff was and will continue to be rendered unable to perform his normal activities and duties and in consequence has sustained a loss therefrom.

25. That as a result of the foregoing, Plaintiff EUGENE FARRELL was damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

26. Plaintiffs repeat, reiterate and reallege each and every allegation set forth above with the same force and effect as if set forth at length herein.

27. The acts complained of herein were performed with malice and willful intent and are beyond the bounds of a civilized society.

28. That by reason of the foregoing, Plaintiff was caused to sustain severe and serious personal injuries and other consequential damages, plaintiff's health was impaired, plaintiff suffered great mental distress.

29. That as a result of the foregoing, Plaintiff EUGENE FARRELL was damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

30. Plaintiffs repeat, reiterate and reallege each and every allegation set forth above with the same force and effect as if set forth at length herein.

31. That on or about May 25, 2017, and while in the custody of the defendants in the County of Bronx, New York, plaintiff was intentionally pushed, punched, assaulted, violated by the defendants, GLYNN and MISERANDINO acting within the scope of their employment and authority in such matter as to knowingly cause injury to plaintiff.

32. That the defendants, their agents, servants and employees, acting as agents and on behalf of defendants, within the scope of their employment, and in particular defendants GLYNN and MISERANDIO, intentionally, willfully and maliciously assaulted and battered the plaintiff in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and caused such battery in and about his head, face, body and limbs.

33. The aforementioned occurrence took place due to the willful, wanton and intentional acts and/or omissions of the Defendants and their agents, servants, employees and/or licensees, all of whom were acting in the scope of their authority and within the scope of and in furtherance of their employment and in furtherance of their agency.

34. That by reason of the aforesaid intentional assault and battery committed by the defendants, their agents, servants and employees, acting within the scope of their authority and without any probable or reasonable cause, the plaintiff was caused to sustain serious injuries and to suffer pain, shock and mental anguish; these injuries and their effects will be permanent; as a result of said injuries Plaintiff has been caused to incur and will continue to incur expenses for medical care and attention; and, as a further result, Plaintiff was and will continue to be rendered unable to perform his normal activities and duties and in consequence has sustained a loss therefrom.

35. That as a result of the foregoing, Plaintiff EUGENE FARRELL was damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

36. Plaintiffs repeat, reiterate and reallege each and every allegation set forth above with the same force and effect as if set forth at length herein.

37. That the defendants, their agents, servants and employees failed to adequately and properly train, supervise, discipline or in any other way control the behavior of their personnel and in particular defendants GLYNN and MISERANDIO, in their hiring practices in the exercise of their functions, in that they had a reckless lack of cautions regard for the rights of the public, including plaintiff, and exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of the defendants.

38. That the failure of the defendants, their agents, servants and employees to adequately and properly train, supervise, discipline or in any other way control the behavior of their personnel in the exercise of their functions, is carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the danger of harms and injury to the public, including plaintiff.

39. That the injuries sustained by the plaintiff resulted from the negligence of the defendants in employing and continuing to employ, without adequate training and supervision, employees of violent character, unsuitable temperament and insensitive disposition.

40. That by reason of the foregoing, Plaintiff was caused to sustain severe and serious personal injuries and other consequential damages, plaintiff's health was impaired, plaintiff suffered great mental distress, his reputation and character were injured, his earning power was permanently impaired, large sums of money were expended by plaintiff in his defense.

41. That as a result of the foregoing, Plaintiff EUGENE FARRELL was damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR AN SIXTH CAUSE OF ACTION

42. Plaintiffs repeat, reiterate and reallege each and every allegation set forth above with the same force and effect as if set forth at length herein.

43. That on May 25, 2017, Defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, DETECTIVE JOHN GLYNN AND DETECTIVE THOMAS MISERANDINO, acting in concert, perpetrated an intentional tort upon the Plaintiff, in the form of an assault.

44. That on May 25, 2017, Defendants THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, DETECTIVE JOHN GLYNN AND DETECTIVE THOMAS MISERANDINO, committed an assault upon the plaintiff that was outside the scope of employment.

45. That on May 25, 2017, Defendants, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, DETECTIVE JOHN GLYNN AND DETECTIVE THOMAS MISERANDINO, while acting in concert made bodily contact with the Plaintiff.

46. That on May 25, 2017, said bodily contact was offensive in nature.

47. That on May 25, 2017, the Defendants intended to make the contact.

48. That on May 25, 2017, the Defendants' deliberately intended, or made a conscious choice to do said act, which resulted in injury to the Plaintiff.

49. That by reason of the foregoing, the Plaintiff has been damaged in an amount, both compensatory and punitive, exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this matter.

AS AND FOR A SEVENTH CAUSE OF ACTION

50. Plaintiffs repeat, reiterate and reallege each and every allegation set forth above with the same force and effect as if set forth at length herein.

51. That the Defendants' conduct, as outlined in the Seventh Cause of Action, was so outrageous in character and so extreme in degree as to go beyond all possible bounds of decency and to be regarded as atrocious, and utterly intolerable in a civilized community that the plaintiff makes a claim for "intentional infliction of emotional distress."

52. That by reason of the foregoing, the Plaintiff has been damaged in an amount, both compensatory and punitive, exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this matter.

AS AND FOR A EIGHTH CAUSE OF ACTION

53. Plaintiffs repeat and reallege each and every allegation set forth above with the same force and effect as though set forth herein at length.

54. That at all times hereinafter mentioned, Plaintiff, **RITA FARRELL**, is the spouse of Plaintiff, **EUGENE FARRELL**, and as such was entitled to the society, services and consortium of her spouse, **EUGENE FARRELL**.

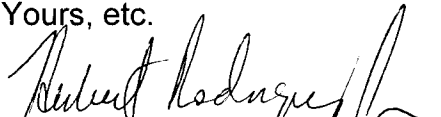
55. That by reason of the foregoing, Plaintiff, **RITA FARRELL**, was deprived of the society, services and consortium of the Plaintiff, **EUGENE FARRELL**, and shall forever be deprived of said society, services and consortium.

56. By reason of the above, Plaintiff, **RITA FARRELL**, has sustained damages, both general and special, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction

WHEREFORE, Plaintiffs demand judgment against the Defendants on all causes of action, for both compensatory and punitive damages, in an amount to be determined upon the trial of this action, together with the costs and disbursements of this action

Dated: New York, New York
March 7, 2018

Yours, etc.



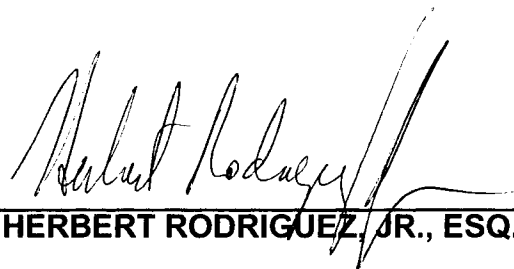
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ATTORNEY'S VERIFICATION

HERBERT RODRIGUEZ, JR., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury: I am an attorney at SCHWARTZ GOLDSTONE CAMPISI & KATES, LLP, attorneys of record for Plaintiffs. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff does not reside in the county wherein I maintain my offices.

DATED: New York, New York
March 7, 2018


HERBERT RODRIGUEZ, JR., ESQ.